the ECI seems to be taking a de facto citizenship verification of all voters in Bihar. This is evident from the explicit instructions directing electoral registration officers to refer suspected foreign nationals to authorities under the Citizenship Act, 1955. These guidelines, which remain under constitutional challenge in the SC, align with the framework of the Citizenship Amendment Act (CAA), 2003.

The CAA, 2003, controversially redefined undocumented migrants, including cross-border refugees, as "illegal migrants", stripped their children of birthright citizenship, and proposed the creation of an NRC. The accompanying Citizenship Rules of 2003, notified before the law was operationalised, outlined a process for identifying and excluding doubtful citizens. However, these rules have not been updated since, raising legal questions about their validity.

Despite this legal ambiguity, and in the absence of any formal order from the Registrar General to initiate an NRC, the SIR closely mirrors the NRC procedure of using house-to-house enumeration and strict documentation. In the SC, petitioners argued that the SIR violated constitutional provisions and shifted the burden of citizenship proof onto voters in contravention of established electoral practices. Former CEC N. Gopalaswami, however, dismisses these concerns. He argues that elections are meant solely for Indian citizens, not foreigners, and that verifying voter eligibility through proper procedures and reliable documentation should not be a cause for objection.

THE MIGRANT QUESTION

There is also concern about migrant labourers who may either not have access to the requisite documents and/or the wherewithal to upload them online within the deadline. According to the 2022 Bihar caste survey, nearly 5.4 million people, around 4.1 percent of the state's population, were recorded as residing outside the state. Jan Suraaj Party founder Prashant Kishor has accused the ECI of orchestrating the revision to help the ruling NDA by removing migrant workers, whom he called the biggest electoral threat to the BJP-Janata Dal (United) alliance.

Government officials claim that they have ensured those living and working beyond state borders are not left behind. "If a migrant worker cannot fill the enumeration form digitally, a family member can fill it here. We then send it to him via WhatsApp. All he needs to do is print it, sign it wherever he is and send it back. In extreme cases with no internet, no smartphone, the panchayat secretary is empowered to certify his identity," says block development officer Chandan Kumar. This was borne out by a ground report, which found how the state's administrative machinery has created workarounds not just for migrant labourers, but also to assist genuine voters who lack proper documentation. For instance, while Aadhaar in itself is not among the ECI's officially sanctioned documents, it is quietly being repurposed, not as proof, but as a bridge.

In Bhojpur's Nasrathpur village, under the Chhilaus panchayat, BLO Kautuk Kumar leads us down a dusty lane to the home of Banti Kumar, a non-matriculate contractor whose Aadhaar details have already been submitted to initiate the process of securing a caste certificate. A few doors away, farmer Ramesh Kumar is in the midst of a similar exercise; his Aadhaar card, cross-verified by the panchayat office, forms the basis for his residential certificate application. "Even though Aadhaar or ration cards are not accepted in isolation, when combined with verification from the panchayat, they are adequate for establishing identity. Certificates are being issued within seven days on special state orders," says an official in Patna.

Amid mounting backlash, the ECI has clarified that voters can still be verified even without the mandatory documents. Electoral Registration Officers (EROs) have been allowed to rely on field inquiries or alternative forms of proof. "Don't worry if you don't have every document. What matters is that you fill the enumeration form. We have various ways to verify your identity and citizenship," says Divya Shakti, sub-divisional magistrate of Danapur, addressing a group of anxious residents at Baldeva High School. Critics argue that leaving such discretion to local officials opens the door to misuse and potential bias.

As Bihar's 79 million voters navigate this unprecedented verification maze, the implications extend far beyond the state's borders. It could reshape electoral politics across a nation where millions lack the papers to prove their belonging to the land of their birth. ■

NO SIR, PLEASE

The key objections against the special intensive revision (SIR) of the voter list in Bihar

- **Estimates suggest** 25-30 million people may lack required documents, potentially excluding one-third of adult population. Disproportionate effect on Muslims, Dalits, migrant workers and rural poor
- **Exclusion of documents** like Aadhaar, ration card and MGNREGA card, which the SC flagged on July 10
- **Lack of prior consultation** with political parties and deviation from established ECI practices
- **Exercise conducted** just 4-6 months before Bihar polls, unlike historical precedent of 2-3-year gap
- **Unrealistic 30-day** timeline for verifying 79 million voters during monsoon season in the flood-prone state
- **Critics label** it "National Register of Citizens through backdoor" due to citizenship verification requirements